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Attorneys for Defendants, Adam Brady and Emma Brady

ELECTRONICALLY
F I L E D
Superior Court of California, County of San Francisco
07/10/2025
Clerk of the Court
BY: JAMES FORONDA
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNLIMITED CIVIL JURISDICTION

JEREMY BERENS and
PATRICIA SZAFRANSKI-BERENS,

Plaintiffs,

vs.

ADAM BRADY; EMMA BRADY; and
DOES 1 to 30,

Defendants.
_____/

Case No. CGC-24-611337

DECLARATION OF JOSEPH WOOD IN SUPPORT OF *EX PARTE* APPLICATION, PURSUANT TO STIPULATION, FOR CONTINUANCE OF TRIAL

Dept.: 206
Date: July 11, 2025
Time: 11:00 a.m.

Joseph Wood declares:

1. I am the attorney for Adam Brady and Emma Brady ["the Bradys"], defendants in the above-named action. The facts set forth below are within my personal knowledge and if called as a witness I would testify competently to those facts.

2. Service of the complaint on the Bradys in this action was completed on or about May 23, 2024.

3. All parties have stipulated to the continuance currently being sought.

4. No prior continuances have been sought in this matter.

5. On October 24, 2024, Plaintiffs submitted a claim to the Stillwater Property and Casualty Insurance Company ["Stillwater"] placing that carrier on notice of the present action.

6. The Bradys have since that date made repeated requests for a determination as to whether Stillwater would accept coverage, would provide the Bradys with a defense, and/or would indemnify the Bradys for any judgment or settlement they might be required to pay.

7. Despite those requests, Stillwater has not yet issued such a determination.

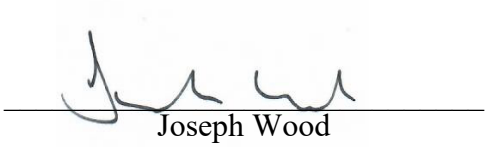
8. The absence of any such determination has materially impaired the parties' ability to move this case forward in two important respects. First, without knowing whether insurance would be available to indemnify the Bradys for any judgment or settlement they might be required to pay, the parties have been unable to meaningfully engage in mediation or informal dispute resolution efforts. It makes little sense to have settlement discussions where, as here, there is uncertainty as to whether indemnification will be available.

9. Second, and equally important, if Stillwater agrees to provide a defense it will of course appoint its own choice of counsel to represent the Bradys. Should that occur, newly appointed counsel would need to familiarize themselves with the factual record and procedural posture of the case, determine whether additional discovery was necessary, evaluate legal defenses, and come to a conclusion as to an appropriate settlement amount.

10. New counsel would also need, should the case *not* settle, sufficient time to prepare for trial – time that is not available given the presently scheduled trial date.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true.

DATED: July 7, 2025



Joseph Wood

PROOF OF SERVICE

Alexander Vaisman declares:

1. I am over twenty-one years of age and am not a party to the above-named action. My business address is 1 Sansome Street, Suite 3500, San Francisco, CA 94104.

2. On July 7, 2025, in San Francisco, California, I served the attached

***EX PARTE* APPLICATION, PURSUANT TO STIPULATION, FOR CONTINUANCE OF TRIAL**

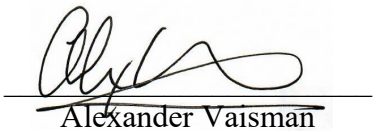
on the parties that have appeared in this action.

3. Service was made by email transmission as follows:

Tom H. Elke
Alexander Merchant
Elke & Merchant, LLP
Email address: alex@elkemerchant.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true.

DATED: July 7, 2025



Alexander Vaisman